

1 **NOTICE TO ALL PARTIES RE:**
2 **ASSIGNMENT OF TEMPORARY JUDGE**
3 (Cal. Rules of Court, rule 2.816)

4
5 This notice shall serve to inform all parties with matters in Department 403
6 scheduled for Thursday, 7/30/26 that:

- 7 1) A temporary judge (Judge Pro Tem) has been assigned to hear all matters on
8 calendar on Thursday, 7/30/26 in Department 403;
9 2) JUDITH E. HARDING is the Judge Pro Tem assigned to this Department;
10 3) JUDITH E. HARDING is a qualified member of the State Bar of California
11 and satisfies the requirements of California Rules of Court, rule 2.812;
12 and
13 4) You have the right to have your matter heard instead before a judge,
14 commissioner, or referee of the court.
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16 All parties who consent to have their matter heard before the Judge Pro Tem will
17 be asked to stipulate to having their hearing heard before the Judge Pro Tem.

18 If you do not stipulate to have your matter heard before the Judge Pro Tem, please
19 inform the clerk and a new court date will be chosen in which your matter may be
20 heard before a judge, commissioner, or referee of the court.
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Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRANDA DEVLIN,

Petitioner

VS.

TAD DEVLIN,

Respondent

) Case Number: FDI-21-794941

) Hearing Date: July 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHILD SUPPORT, FAMILY COURT 3044 PRESUMPTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Miranda Devlin (Mother) and Respondent Tad Devlin (Father). They share two minor children: Chloe (DOB: 4/25/12) and Paige (DOB: 4/15/16).
- 2) Per the Findings and Order After Hearing (FOAH) filed 11/21/24, Mother had parenting time with the minor children every Tuesday after school until Wednesday morning drop off at school and every other weekend from Friday after school until Sunday at 5:00 PM.
- 3) On 11/27/24, the Court granted a Domestic Violence Restraining Order (DVRO) after a 6-day trial. Father is the protected party, and Mother is the restrained party. The minor children are not listed as protected parties; however, Father was awarded sole legal and sole physical custody.
- 4) On 10/8/25, Mother filed a Request for Order seeking: (a) a finding that Mother rebutted the Family Code section 3044 presumption against joint custody; (b) joint legal and physical custody; (c) modification of the parenting time orders to increase her time an extra day during the week

1 and one extra night every other weekend; (c) modification of the 2/11/25 child support orders to
2 guideline child support. Mother attached a proposed holiday schedule to her Request for Order.

3 5) On 10/8/25, Mother filed an Income and Expense Declaration.

4 6) On 11/17/25, the parties appeared for Readiness hearing. The matter was scheduled for mediation
5 with Family Court Services on 1/6/26 and regular hearing in Dept. 403 on 2/3/26.

6 7) On 11/5/25, Father filed a Responsive Declaration in opposition to Mother's Request for Order
7 asking the Court to deny Mother's requested relief. However, Father states that he is agreeable to
8 Mother having the minor children an extra weeknight (Tuesday and Wednesday night until
9 Thursday morning school drop-off) on weekends that Mother does not have parenting time.

10 8) On 11/5/25, Father filed an Income and Expense Declaration.

11 9) On 11/12/25, Mother filed a Reply Declaration reiterating her requests.

12 10) On 1/6/26, the parties attended FCS mediation but did not reach an agreement.

13 11) On 1/27/26, Mother filed a supplemental declaration in support of her position.

14 12) On 2/3/26, the parties appeared at hearing, and Father requested a long-cause (i.e., evidentiary)
15 hearing. The Court did not adopt any portion of its Tentative Ruling issued for the 2/3/26 hearing
16 and set all pending issues for long-cause hearing on 5/21/26.

17 13) On 5/6/26, Mother filed an Income and Expense Declaration.

18 14) On 5/21/26, the parties appeared at the long-cause hearing and the Court, in pertinent part: (a)
19 determined Mother rebutted the Family Code section 3044 presumption against joint custody; (b)
20 granted Mother's request for joint legal custody; (c) increased Mother's parenting time with the
21 minor children from Tuesdays pick-up afterschool to Thursday drop off at school with alternate
22 weekends; and (d) ordered the parties to attend FCS Mediation on 6/18/26. The Court made
23 additional orders, including continuing the matter to 6/30/26 for issues related to child support,
24 summer schedule, vacation schedule, and make-up time.

25 15) On 6/18/26, the parties attended FCS mediation and were able to reach a partial agreement.

26 16) At the prior 6/30/26 hearing, the Court ordered that Chloe shall attend Lowell High School for the
27 upcoming 2026-2027 school year, Paige shall attend Sant Peter and Paul Elementary and Middle
28 School through 8th grade, and all outstanding issues are continued to 7/30/26.

17) On 7/20/26, Mother filed a supplemental declaration requesting guideline child support and spousal support retroactive to 2/1/26 based on Chloe living with Mother full time and Paige being on a 2-2-5 parenting time schedule. Mother states her unemployment and increased parenting time has resulted in depletion of funds.

18) On 7/20/26, Mother filed an Income and Expense Declaration.

19) On 7/20/26, Father filed an Income and Expense Declaration.

B. Findings and Order

- 1) Mother's request for modification of the 2/11/25 support order is GRANTED retroactive to 2/1/26 as the Court finds Mother met her burden of showing a change in circumstances warranting a modification of support given that Mother's employment status and the parties' parenting time changed. See *Marriage of Bardzik* (2008) 165 CA4th 1291, 1303-1304.
- 2) For the period of 2/1/26 (date on which Chloe started living with Mother fulltime) to 5/1/26 (date on which Mother's employment ended), and in accordance with "XSpouse A" attached hereto and incorporated herein, Father owes Mother \$4,240 in guideline monthly child support and \$3,824 in guideline monthly spousal support for a total monthly support order of \$7,764.
- 3) For the period of 5/1/26 (date on which Mother's employment ended) - 5/21/26 (date on which the Court ordered a 2-2-5 parenting time schedule), and in accordance with "XSpouse B" attached hereto and incorporated herein, Father owes Mother \$5,326 in guideline monthly child support and \$5,313 in guideline monthly spousal support for a total monthly support order of \$10,408.
- 4) Effective 5/21/26 (date on which the Court ordered a 2-2-5 parenting time schedule), and in accordance with "XSpouse C" attached hereto and incorporated herein, Father owes Mother \$5,677 in guideline monthly child support and \$5,576 in guideline monthly spousal support for a total monthly support order of \$11,003. Monthly payments shall commence on 8/1/26 and are due and payable by the 1st of every month thereafter.
- 5) Father owes Mother \$23,292 in support arrears for the period 2/1/26 – 4/30/26 (\$7,764 x 3), plus \$7,050.54 in support arrears for the period of 5/1/26 – 5/21/26 (\$335.74/day for 21 days), plus \$25,555.30 in support arrears for the period of 5/21/26 – 7/31/26 (\$3,549.30 for the rest of May + (11,003 x 2) for June and July). This means that Father owes Mother a total of \$55,897.84 in

1 support arrears less any support Father already paid during this period. The parties are ordered to
2 meet and confer regarding the payment of arrears to account for and subtract any support Father
3 already paid during this time.

4 6) The XSpouse reports are based on the parties' respective Income and Expense Declarations
5 (Mother's filed 5/6/26 and 7/20/26 and Father's filed 7/20/26) and the following distinctions:

6 a. XSpouse A is based on Mother's employment and 100% parenting time with Chloe and
7 28% parenting time with Paige.

8 b. XSpouse B is based on Mother's unemployment and 100% parenting time with Chloe
9 and 28% parenting time with Paige,

10 c. XSpouse C is based on Mother's 100% parenting time with Chloe and 50% parenting
11 time with Paige.

12 7) The Court will prepare the Findings and Order After Hearing.
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26-07-30 XSpouse A devlin v. devlin 794941.xsp**2026****Fixed Shares**

	Father	Mother
Number of children	1	1
Percent time with NCP	0.00%	28.00%
Filing status	HH/MLA SINGLE	
Number of exemptions	3	1
Wages and salary	30000	6200
Self employed income	0	0
Other taxable income	2562	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	29	115
Other medical expenses	0	0
Property tax expenses	1435	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	750	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	20868
Mother	4683
Total	25551
Support	
Addons	-299
Guideln CS	4240
S.Clara SS	3824
Total	7764

Proposed**Tactic 9**

CS	3843
SS	3669
Total	7512
Saving	368
Releases	-2

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	25552	25920
Percent change	0%	1%

Father

Payment cost/benefit	-7764	-7592
Net spendable income	13104	13276
Change from guideline	0	172
% of combined spendable	51%	51%
% of saving over guideline	0%	47%
Total taxes	11665	11745
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	18469	18469

Mother

Payment cost/benefit	7764	7960
Net spendable income	12447	12643
Change from guideline	0	196
% of combined spendable	49%	49%
% of saving over guideline	0%	53%
Total taxes	1402	953
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	4595	4595

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

Mother pays Addons

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		36 - 64	750	0	299 Mother	4,240 Father	3,940 Father
Chloe	0000-00-00	0 - 100	375	0	158 Mother	3,712 Father	3,553 Father
Paige	0000-00-00	72 - 28	375	0	141 Mother	528 Father	387 Father

26-07-30 XSpouse B devlin v. devlin 794941.xsp**2026****Fixed Shares**

	Father	Mother
Number of children	1	1
Percent time with NCP	0.00%	28.00%
Filing status	HH/MLA SINGLE	
Number of exemptions	3	1
Wages and salary	30000	0
Self employed income	0	0
Other taxable income	2562	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	29	750
Other medical expenses	0	0
Property tax expenses	1435	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	750	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	20868
Mother	-750
Total	20118

Support

Addons	-231
Guideln CS	5326
S.Clara SS	5313
Total	10408

-**Proposed****Tactic 9**

CS	5095
SS	5313
Total	10408
Saving	0
Releases	0

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	20118	20118
Percent change	0%	0%

Father

Payment cost/benefit	-10408	-10408
Net spendable income	10461	10461
Change from guideline	0	-0
% of combined spendable	52%	52%
% of saving over guideline	0%	0%
Total taxes	11665	11665
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	18469	18469

Mother

Payment cost/benefit	10408	10408
Net spendable income	9658	9658
Change from guideline	0	0
% of combined spendable	48%	48%
% of saving over guideline	0%	0%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

Mother pays Addons

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		36 - 64	750	0	231 Mother	5,326 Father	5,095 Father
Chloe	0000-00-00	0 - 100	375	0	111 Mother	3,859 Father	3,747 Father
Paige	0000-00-00	72 - 28	375	0	120 Mother	1,468 Father	1,348 Father

26-07-30 XSpouse C devlin v. devlin 794941.xsp**2026****Fixed Shares**

	Father	Mother
Number of children	1	1
Percent time with NCP	0.00%	49.00%
Filing status	HH/MLA SINGLE	
Number of exemptions	3	1
Wages and salary	30000	0
Self employed income	0	0
Other taxable income	2562	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	29	750
Other medical expenses	0	0
Property tax expenses	1435	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	750	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	20868
Mother	-750
Total	20118
Support	
Addons	-251
Guideln CS	5677
S.Clara SS	5576
Total	11003

Proposed**Tactic 9**

CS	5427
SS	5576
Total	11003
Saving	0
Releases	0

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	20118	20118
Percent change	0%	0%
Father		
Payment cost/benefit	-11003	-11003
Net spendable income	9866	9866
Change from guideline	0	0
% of combined spendable	49%	49%
% of saving over guideline	0%	0%
Total taxes	11665	11665
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	18469	18469
Mother		
Payment cost/benefit	11003	11003
Net spendable income	10253	10253
Change from guideline	0	0
% of combined spendable	51%	51%
% of saving over guideline	0%	0%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

Mother pays Addons

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		26 - 75	750	0	251 Mother	5,677 Father	5,427 Father
Paige	0000-00-00	51 - 49	375	0	104 Mother	1,934 Father	1,830 Father
Chloe	0000-00-00	0 - 100	375	0	147 Mother	3,743 Father	3,596 Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOSE BENITO CAMARGO,

Petitioner

VS.

ANGELA VIVIANA BAQUERO GOYENECHE,

Respondent

) Case Number: FDI-22-796732

) Hearing Date: July 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

HEARING RE: CHILD'S COLLEGE AND SAVINGS ACCOUNT DOCUMENTATION (RFO FILED 5/6/26 BY RESPONDENT); REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME), KARATE CLASS, CONTACT DURING VISIT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jose Benito Camargo (Father) and Respondent Angela Viviana Baquero Goyeneche (Mother). The share one minor child: Amy (DOB: 7/18/19).
- 2) On 5/6/26, Mother filed a Request for Order seeking modification of parenting time, and orders regarding: (a) enrollment in ice skating and karate classes; (b) Mother's contact with the minor child during Father's parenting time; (c) the parties ensuring the minor child has appropriate clothing; (d) transparency around financial issues related to the minor child's college account; and (e) the parties ordered not to make disparaging remarks about the other.
- 3) On 6/30/26, Father filed a Responsive Declaration mostly in agreement with Mother's request so long as they apply equally to both parents. Father attached a letter from Bank of America showing an account in the minor child's name (which Father asserts is a savings account) and a

1 letter from Merrill Lynch showing a college account in the minor child's name. Father indicates
2 he is willing to open a joint account for the minor child's benefit.

- 3 4) On 7/8/26, the parties filed a Stipulation and Order regarding custody and visitation, which
4 appears to resolve all issues in Mother's Request for Order except for the request regarding
5 transparency around financial issues related to the minor child's college account.

6 **B. Findings and Order**

- 7 1) Moving forward, Father shall provide Mother with a copy of all monthly or quarterly bank
8 statements – whichever the bank provides – for the Bank of America account in the minor child's
9 name and Merrill Lynch college account in the minor child's name within 10 days of receipt.
10 2) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ISIVISI IRAI ALFARO,	)	Case Number: FDI-24-800504
Petitioner	)	Hearing Date: July 30, 2026
VS.	)	Hearing Time: 9:00 AM
ABEL PADILLA JR.,	)	Department: 403
Respondent	)	Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER RE: ORDER SHORTENING TIME

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SHAWNA GOHEL,

Petitioner

VS.

AANAND RAMAN GOHEL,

Respondent

) Case Number: FDI-25-801996

) Hearing Date: July 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER OF CHILD CUSTODY, OST

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RAY WESLEY SUDDABY JR,	)	Case Number: FDI-25-802208
Petitioner	)	Hearing Date: July 30, 2026
VS.	)	Hearing Time: 9:00 AM
OLGA ALEXANDROVNA SUDDABY,	)	Department: 403
Respondent	)	Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS
TENTATIVE RULING

At the prior 7/28/26 hearing, this matter was **continued to 8/25/26 at 9 AM in Dept. 403.** No
appearances are required on 7/30/26.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MAKENZIE SHECKELLS,

Petitioner

VS.

MOLHAM KAYALI,

Respondent

) Case Number: FDI-25-802212

) Hearing Date: July 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

- 1) The parties are Petitioner Makenzie Sheckells and Respondent Molham Kayali.
- 2) On 6/11/26, attorneys for Respondent, H. “Raja” S. Gill and Kyle Collett of Gill Law Group, PC (hereafter “Counsel”), filed a Request for Order and supportive declaration asking to be relieved as counsel due to a break down in the attorney-client relationship.
- 3) Counsel’s request to be relieved as counsel is GRANTED as the Court finds it is unopposed.
- 4) Counsel shall lodge an Order Granting Attorney’s Motion to be Relieved as Counsel (MC-053) which the Court will execute and mail a copy of the fully executed MC-053 to Counsel.
- 5) Counsel must then serve a copy of the fully executed MC-053 on their client and file a Proof of Service demonstrating service with the Court.
- 6) Counsel shall also prepare the Findings and Order After Hearing.
- 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within
3 10 days may allow the other party to prepare a proposed order and submit it to the court in
4 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANNE LESLEY SALCER,

Petitioner

VS.

FRANCOIS LUONG,

Respondent

) Case Number: FDV-10-807626

) Hearing Date: July 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER CHANGE OF CHILD SUPPORT, PERCENTAGE EXPENSE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anne Lesley Selcer (Mother) and Respondent Francois Luong (Father). They share one minor child: Sitka, age 17 (DOB: 7/2/09).
- 2) On 6/15/26, Mother filed a Request for Order seeking modification of the child support order filed 11/13/20 (\$1,052 monthly child support with a two-way bonus table retroactive to 8/1/20), reallocation of child support add-on expenses, and Father ordered to maintain the minor child's current health insurance.
- 3) On 6/15/26, Mother filed an Income and Expense Declaration.
- 4) On 7/14/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order. Father asserts that an increase in child support "would have catastrophic consequences on [his] ability to provide care for Sitka." Father states that he was laid off in 2022 and didn't secure new employment until February 2024 and incurred a significant amount of debt.
- 5) On 7/14/26, Father filed an Income and Expense Declaration.
- 6) On 7/23/26, Mother filed a Reply Declaration reiterating her position.

1 **B. Findings and Order**

- 2 1) Per Family Code section 3653, orders granting modification of child support may be made
3 retroactive to the date of the filing of the notice of motion or to any subsequent date.
- 4 2) As such, the Court finds good cause to GRANT Mother's request for modification of child
5 support retroactive to 6/15/26 as the parties' employment statuses and the parenting time changed
6 since the 11/13/20 child support order was issued, both of which qualify as a change in
7 circumstances warranting modification of support. See *Marriage of Bardzik* (2008) 165 CA4th
8 1291, 1303-1304.
- 9 3) Effective 6/15/26, Father shall pay Mother \$1,061 in guideline monthly child support by the 1st of
10 every month. Monthly payments shall commence on 8/1/26.
- 11 4) This means that Father owes Mother \$18 in guideline child support arrears. Father shall pay this
12 balance in full by 8/15/26.
- 13 5) Moving forward, the parties shall share the following add-on expenses with Father responsible for
14 81% and Mother 19% of costs: childcare costs related to employment or to reasonably necessary
15 education or training for employment skills, reasonable uninsured healthcare costs for the child,
16 and the reasonable costs associated with mutually agreed upon extracurricular activities (neither
17 party shall unreasonably withhold consent for a child to participate in an activity). The procedure
18 to make or pay a reimbursement claim for these child support add-ons shall be as set forth in
19 Judicial Council Form FL-192.
- 20 6) By law, health insurance coverage for a supported child shall be maintained by either or both
21 parents if that insurance is available at no cost or at a reasonable cost to the parent. See Family
22 Code section 3751.
- 23 7) As such, Mother's request that Father maintain the minor child on the health insurance plan under
24 which the minor child was previously covered is GRANTED.
- 25 8) The Court will prepare the Findings and Order After Hearing.
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2026**Fixed Shares**

	Father	Mother
Number of children	0	1
Percent time with NCP	49.00%	0.00%
Filing status	SINGLE HH/MLA	
Number of exemptions	1	2
Wages and salary	7704	0
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	384	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	255	0
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	5586
Mother	0
Total	5586
Addons	0
Guideln CS	1061
S.Clara SS	0
Total	1061

Support**Settings changed****Proposed****Tactic 9**

CS	1104
SS	0
Total	1104
Saving	224
Releases	1

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	5586	5810
Percent change	0%	4%
Father		
Payment cost/benefit	-1061	-880
Net spendable income	4525	4706
Change from guideline	0	182
% of combined spendable	81%	81%
% of saving over guideline	0%	81%
Total taxes	1863	1639
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	5485	5485
Mother		
Payment cost/benefit	1061	1104
Net spendable income	1061	1104
Change from guideline	0	43
% of combined spendable	19%	19%
% of saving over guideline	0%	19%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Father pays Guideline CS, Proposed CS

FC 4055 checking: **ON****Per Child Information**

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		49 - 51	0	0	0 Father	1,061 Father	1,061 Father
	0000-00-00	49 - 51	0	0	0 Father	1,061 Father	1,061 Father